

2014 SCC OnLine All 8036

(BEFORE KRISHNA MURARI AND VIJAY LAKSHMI, JJ.)

Radhe Shyam Singh Petitioner

v.

State of U.P. and 2 Ors. Respondents

Counsel for Petitioner:- Jagriti Singh, Ekta Kaur

Counsel for Respondent:- C.S.C., Mahboob Ahmad

Writ - C No. - 30266 of 2014

Decided on May 28, 2014

Hon'ble Krishna Murari, J.

Hon'ble Mrs. Vijay Lakshmi, J.

Petitioner has approached this Court seeking the following main reliefs:

“(i) issue a writ, order or direction in the nature of mandamus commanding and directing the respondent no. 2 to provide the new electricity connection to the petitioner.

(ii) issue a writ, order or direction in the nature of mandamus commanding and directing the respondents no. 1 and 2 to consider the representation of the petitioner dated 16.08.2013 and 12.08.2013.”

Above relief has been claimed in the back-drop of the facts that the petitioner is in occupation of premises no. J-12/95-95A, Narsingh Tila, Durvasha Ashram, Ramanand Nagar Dhupchandi, Varanasi as a tenant of the owner/landlord of the premises, the respondent no. 3. On account of on-going dispute with the landlord and in order to create pressure to vacate the premises, the electricity connection of the premises was disconnected by the landlord. Petitioner applied for grant of new electricity connection before the respondent no. 2 on 12.06.2013.

It is alleged that the electricity connection is not being granted to the petitioner on account of objection being raised by respondent no. 3, landlord of the premises.

Section 43 of the Electricity Act, 2003 provides that it is the duty of every licensee to give supply of electricity to the owner or occupier of any premises within its area.

In the case in hand instead of ensuring supply of electrical energy to

the occupation of the premises in question in accordance with the provisions of Section 43 of the Electricity Act, the respondent-Corporation is not granting new connection on account of objection by the landlord. Refusal of the landlord to give consent for installing new electricity connection in the premises which is in occupation of a tenant cannot constitute a ground to refuse new connection as there is a legal duty cast upon the licensee under Section 43 of the Electricity Act.

The view taken by us finds support from the judgment of the Hon'ble Apex Court in the case of *Chandu Khamaru v. Nayan Malik* (2011) 12 SCC 314. The same view has again been taken by the Hon'ble Apex Court in the judgment and order dated 25.06.2013 passed on Writ Petition (Crl.) No. 103 of 2013, *Dr. Meena Chaudhary @ Dr. Meena P.N. Singh v. BSES Rajdhani Power Limited*, copy whereof has been produced before us by the learned counsel for the petitioner.

In view of the aforesaid facts and circumstances, the petitioner is entitled for the relief claimed.

We, accordingly, issue a mandamus directing the respondent no. 2 to ensure the installation of new electricity connection in the premises of the petitioner in his name subject to his completing all the necessary formalities provided under the U.P. Electricity Supply Code, 2005. The connection shall be provided expeditiously, preferably, within a period of two weeks from the date of making of the necessary application and completing all necessary formalities by the petitioner. Writ petition stands disposed of.

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